

CHAPTER 5: NONCONFORMITIES

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Section 5.1 Purpose and Applicability

The purpose of this Chapter is to regulate and limit the continued existence of uses and structures established prior to the effective date of this Ordinance (or any amendment subsequent thereto) that do not conform to this Ordinance. Any nonconformity created by a change in the classification of property or the text of these regulations shall be regulated by the provisions of this chapter. Many nonconformities may continue, but the provisions of this chapter are designed to curtail substantial investment in nonconformities and to bring about eventual elimination and/or lessen their impact upon surrounding conforming properties in order to preserve the integrity of the area in which it is located and the intent of this Ordinance. Nonconforming situations that were otherwise lawful on the effective date of this Ordinance may be continued, subject to the restrictions and qualifications set forth in this Article.

Section 5.2 General Provisions for Nonconforming Situations

5.2.1 Extension or Enlargement of Nonconforming Situations

Except as specifically provided for in this Section, it shall be unlawful for any person to engage in any activity that causes an increase in the extent of nonconformity of a nonconforming situation.

- A. A nonconforming use may be extended through any portion of a completed building that, when the use was made nonconforming by this Ordinance, was manifestly designed or arranged to accommodate such use. However, a nonconforming use may not be extended to additional buildings or to land outside the original building.
- B. A nonconforming use may not be extended to cover more land than was occupied, or manifestly designed and arranged to be occupied, by that use when it became nonconforming.
- C. The volume, intensity, or frequency of use of property where a nonconforming situation exists may be increased and the equipment or processes used at a location where a nonconforming situation exists may be changed if these or similar changes amount only to changes in the degree of activity rather than changes in kind and no violations of other paragraphs of this Section occur.
- D. Physical alteration of nonconforming structures or structures containing a nonconforming use is unlawful if it results in:
 - An increase in the total amount of space devoted to a nonconforming use.
 - Greater nonconformity with respect to dimension restrictions such as yard requirements, height limitations, or density requirements.
 - The enclosure of previously unenclosed areas, even though those areas are or were used in connection with the nonconforming activity.
- E. Minor repairs to and routine maintenance of property where nonconforming situations exist are permitted and encouraged. Major renovation - i.e., work estimated to cost more than 10 percent but less than 60 percent of the taxed value of the structure to be renovated may be done provided that the work will not result in a violation of any other paragraphs of this subsection. In no case, however, shall work costing more than 60 percent of the taxed value of the structure be done, singularly or cumulatively, within any five (5) year period.

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- F. Nothing herein shall prevent the maintenance, repair and extension of a single-family dwelling that is nonconforming as to use, provided done in conformance with the dimensional requirements of the R-M Mixed Residential District, nor prevent the maintenance, repair, extension, or construction of a residential accessory building or swimming pool, provided done in conformance with the requirements of this Ordinance.

5.2.2 Re-establishment of a Nonconforming Situation Prohibited

- A. If a nonconforming use is abandoned for 180 days or more, the use shall not be allowed to re-establish. All new uses in said structure shall thereafter be conforming.
- B. Any nonconforming building or structure or any building or structure containing a nonconforming use for which major repair or reconstruction is proposed in any amount equal to 60 percent or more of the taxed value of the building or structure or which has been damaged by any cause to an extent equal to 60 percent or more of its taxed value shall only be repaired and/or reconstructed and used as a conforming structure and a conforming use.
- C. Nothing herein shall prevent the reconstruction of a single-family dwelling that is nonconforming as to use provided such reconstruction conforms to the dimensional requirements of the R-M Mixed Residential District.

Section 5.3 Nonconforming Uses

- A. A nonconforming use may be changed to a conforming use. Thereafter, the property may not revert to a nonconforming use.
- B. A nonconforming use shall not be changed to another nonconforming use nor shall a nonconforming structure be replaced after it has been destroyed except upon approval by the Board of Adjustment. Such finding by the Board of Adjustment shall follow the provisions set forth in Chapter 16.
- C. If a nonconforming use and a conforming use, or any combination of nonconforming uses exist on one lot, the use made of the property may be changed only to a conforming use.
- D. Conforming uses, except Adult Oriented Businesses, may be established or re-established in nonconforming buildings or structures provided that off-street parking is provided as required by this Ordinance and provided no other provision of this Ordinance for the establishment of new uses is violated.

Section 5.4 Nonconforming Structures

5.4.1 Nonconforming Principal Structures

- A. A nonconforming structure containing a use permitted in the zoning district in which it is located may continue only in accordance with the provisions of this section.
- B. Normal repair and maintenance may be performed to allow the continuation of nonconforming structures.

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- C. A nonconforming structure may not, under any circumstances, be enlarged or altered in a way which increases its nonconformity.
- D. Should a nonconforming structure be moved for any distance on the lot upon which it is located, if possible, it shall be moved so as to make the structure conforming. Otherwise, the structure, if moved shall be placed on the lot in as conforming a manner as possible.

5.4.2 Nonconforming Accessory Structures

- A. A nonconforming accessory use or accessory structure may be expanded only if the nonconforming features of that use or structure are not expanded so as to increase the degree of nonconformity.
- B. No nonconforming accessory use or accessory structure shall continue after the principal use or structure is terminated by abandonment, damage, or destruction unless such accessory use or accessory structure thereafter is made to conform to the standards for the zoning district in which it is located.

Section 5.5 Nonconforming Lots

A nonconforming lot of record in existence prior to the adoption of this Ordinance, that does not meet minimum area or width requirements may be developed for any of the uses permitted by these regulations in the zoning district in which it is located, provided that the use meets all applicable yard, setback requirements for the zoning district in which the lot is located.

Section 5.6 Nonconforming Signs

- A. Subject to the restrictions of this Section, nonconforming signs that were otherwise lawful on the effective date of this Ordinance may be continued.
- B. No person may engage in any activity that causes an increase in the extent of nonconformity of a nonconforming sign or causes a previously conforming sign to become nonconforming.
- C. A nonconforming sign may remain if only the sign face is replaced. The structure of a nonconforming sign may not be moved or replaced except to bring the sign into complete conformity with this Ordinance. Once a nonconforming sign is removed from the premises or otherwise taken down or moved, said sign may only be replaced with a sign which is in conformance with the terms of this Ordinance.
- D. Minor repairs and maintenance of nonconforming signs necessary to keep a nonconforming sign in sound condition are permitted. If repair or maintenance of a nonconforming sign results in the removal of the sign frame structure for any length of time, the replaced sign frame structure and any copy placed on it shall be in conformance with this Ordinance.
- E. If a nonconforming sign is destroyed by natural causes, it may not thereafter be repaired, reconstructed, or replaced except in conformity with all the provisions of this Ordinance, and the remnants of the former sign structure shall be cleared from the land. For purposes of this Section, a nonconforming sign shall be considered "destroyed" if it receives damage to an extent of more than 60 percent of the cost of replacing the sign copy.

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- F. Notwithstanding other provisions contained in this Section, the message of a nonconforming sign may be changed so long as this does not create any new nonconformities.
- G. If a nonconforming sign which advertises a business, service, commodity, accommodation, attraction or other enterprise or activity that is no longer operating or being offered or conducted, that sign shall be deemed abandoned and shall be removed or brought into compliance by the sign owner, property owner, or other party having control over such sign within 90 days after the use has ceased operation or the service or commodity has ceased being offered. If there is a change of use or name of business on a particular piece of property, and there were one (1) or more on-premise signs which advertised the business, any new signs placed for the new use or business name must meet all sign requirements for the underlying zoning district.
- H. If a nonconforming sign remains blank for a continuous period of 180 days, that sign shall be deemed abandoned and shall, within 30 days after such abandonment, be altered to comply with this Ordinance or be removed by the sign owner, owner of the property where the sign is located, or other person having control over such sign. For purposes of this Ordinance, a sign shall be deemed "blank" if:
- It advertises a business, service, commodity, accommodations, attraction, or other enterprise or activity that is no longer operating or being offered or conducted; or
 - The advertising message it displays becomes illegible in whole or substantial part; or
 - It does not contain an advertising message. (For such purposes, the terms "Sign For Rent", "Sign For Lease", "Sign For Sale", etc. shall not be deemed to be an advertising message except for billboards).

Section 5.7 Nonconforming Landscaping and Buffering

In accordance with Chapter 7 of this Ordinance, certain uses are required to provide screening and/or landscaping on-site.

- A. Except as herein provided, any expansion of an existing use which is deficient in landscaping and/or buffering or any change in principal use cannot occur without the required screening and/or landscaping having first been provided on-site. The Central Business (C-B) District is exempt from this requirement.
- B. Expansions to the parking area or loading areas which increase the total area more than 20 percent shall be required to comply with all applicable parking and loading area landscaping and screening.

Section 5.8 Nonconforming Parking or Loading

- A. On any lot in any zoning district except the Central-Business (C-B) district, which contains a use which does not comply with the off-street parking and loading regulations contained in Chapter 8 of this Ordinance, a certificate of occupancy shall not be issued for any expansion or any change of use which would result in a need to increase the number of off-street parking and/or loading spaces required (except as herein provided), until the requisite number of off-street parking spaces and all paving requirements have been met.
- B. A certificate of occupancy may be issued when there has been a change in a principal use and the

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number of off-street parking spaces required for the new use (per Chapter 8 of this Ordinance) is within ten (10) percent or ten (10) spaces, whichever is less, of the number of off-street parking spaces actually provided. Such relief may be granted on a one-time only basis per lot or planned development. In such instances where relief is provided, the additional parking spaces need not be paved (but shall have a graded gravel, crushed-stone or similar dust-reducing surface) if the parking lot prior to said expansion was not paved.

Section 5.9 Nonconforming Sites and Buildings Developed Prior to August 1, 2006

5.9.1 Applicability

Standards of Section 5.9 shall only apply to buildings 5,000 square feet or less in size in the N-C, C-B, and H-B zoning districts.

5.9.2 Development Plan Requirements

Re-use projects meeting the criteria of Section 5.9 shall follow the development plan requirements for Minor Site Plans outlined in Section 18.6.2.

5.9.3 Exemption From Building Design Guidelines

Re-use projects meeting the criteria of Section 5.9 shall be exempt from the building design requirements of this ordinance. Building Design requirements shall still apply to any additions to existing structures.

5.9.4 Landscaping

Landscaping for re-use projects developed according to this Section shall meet the standards set forth in Chapter 11 to the greatest extent possible. When plantings are not possible, alternatives such as decorative fencing or planter boxes/pots should be implemented based on the table below:

Type of Development	Landscaping Required
Change of Use With No Structural Change or Increase in Required Parking	Replace dead or non-existing landscaping within existing planters and buffer areas
Change of Use Which Results in the Expansion of Required Parking	Replace dead or non-existing landscaping within existing planters and buffer areas, install required Type B and Type C Screening
Additions to Existing Structures	Landscaping requirements of Chapter 11 shall be applied to areas of new square footage only
Tear Downs of Existing Structures, Replaced With New Construction	Landscaping requirements of Chapter 11 shall apply to the entire development

5.9.5 Parking Requirements

The Parking Requirements of Chapter 10 shall be met where possible. The Zoning Administrator is authorized to approve a reduction of up to 33% in the minimum parking ratios of Section 10.2 For buildings in existence before August 1, 2006 when such a reduction will facilitate increased compliance with landscaping or dumpster storage area requirements.

The TRC may approve design alternatives exceeding those which may be granted by the Zoning Administrator where appropriate.

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Requirements for additional parking and loading spaces triggered by building additions shall only apply to the expanded building area, and shall not apply to the existing square footage on-site.

5.9.6 Paving Requirements

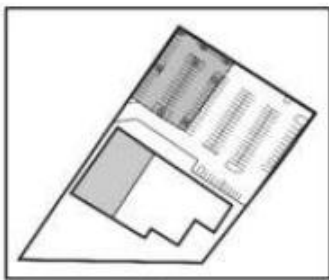
Existing sites requiring less than 10 spaces shall not be required to improve existing gravel parking with asphalt, concrete, or permanent wearing surface. Existing parking areas used to meet parking requirements must be maintained and repaired to good condition, free of potholes.

5.9.7 Existing Driveways

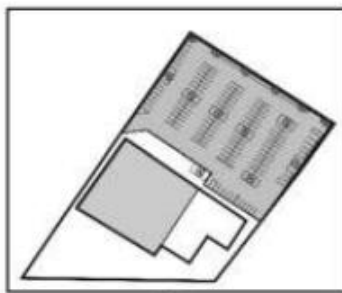
When sites with existing driveways comprising the entire frontage of a parcel along streets maintained by the Town of China Grove are redeveloped or experience a change of use that results in an expansion of required parking, existing driveway width shall be reduced to channelize ingress/egress. This requirement shall include physically removing paved areas as determined necessary by the TRC. The TRC shall also review and approve driveways on Town-maintained streets.

Section 5.10 Nonconforming Parking Lot Landscaping for Expansions of Parking or Building Expansions or Redevelopment

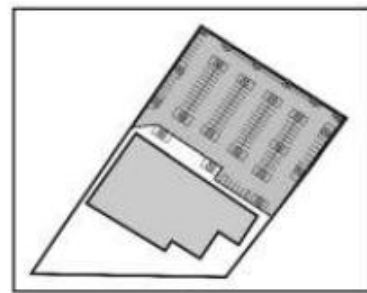
- A. For parking lots being expanded, the new parking lot and streetyard standards apply only to the expanded area, but the plantings may be dispersed throughout the entire parking lot or streetyard.
- B. For developments where the building(s) are being expanded or redeveloped, the new streetyard and parking area landscaping requirements will be applied in a ratio similar to the percentage of gross floor area of building expansion or redevelopment. If expansion or redevelopment involves 50% or less of existing building square footage, parking lot and streetyard planting upgrades will apply at the same rate as the percentage expansion; if building expansion is 51%-80%, the planting upgrades will be at a rate of 50% of the new planting standards; if building expansion is 81% or higher, planting upgrades will be at 100% of the new planting standards).
- C. When upgraded plantings for parking lots or streetyards are at a rate of less than 100%, the plantings may be dispersed throughout the parking lot and throughout the streetyard.



Expansion of 50% or less



Expansion of 51-80%



Expansion of 81% or more

Section 5.11 Nonconforming Manufactured Homes and Manufactured Home Parks

- A. Nonconforming manufactured homes on individual lots may not be replaced except with a use that conforms with all the requirements of this Ordinance for the zoning district in which located.

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- B. Nonconforming manufactured homes may be placed and replaced in nonconforming manufactured home parks so long as the manufactured home park retains its nonconforming status, meets the requirements of Section 8.23 and Section 5.11C below, and the space was designed and arranged as a manufactured home space prior to the adoption of this Ordinance.
- C. A nonconforming manufactured home park granted a certificate of continuation may continue to operate, provided the manufactured home park meets one of the following conditions:
1. The manufactured home park may be reconstructed to meet all of the requirements of Section 7.6 and Section 8.24. The manufactured home park shall be in an R-MH zoning district and shall be subject to the issuance of a Special Use Permit by the Town Council following the Special Use Permit approval process set forth in Chapter 17. All reconstruction is to be done without extension or enlargement of the nonconforming situation. This condition may be met at any time prior to the date of required cessation.
 2. All nonconforming manufactured home parks will be given the option of subdividing the property into individual lots. To be eligible to qualify under this condition the manufactured home park must be located within an R-MH zoning district. Each individual lot must satisfy the lot size, lot width, setbacks, street access requirement, and all other requirements for subdivision within said zoning district. Each manufactured home must meet all requirements set forth in Section 8.23. Furthermore, no additional land may be used to meet these requirements. No additional nonconforming manufactured homes shall be brought onto the property nor shall any nonconforming manufactured home be replaced at any time. This option shall cease to be available upon the final date of cessation for manufactured home parks.
 3. The manufactured home park continues to meet these minimum standards:
 - a. Minimum site area (in acres): 1.5
 - b. Minimum number of Manufactured home Spaces per park: 6
 - c. Maximum number of Manufactured home Spaces per acre: 8
 - d. Minimum area per Manufactured home Space
 - Single-wide: 3500 square feet
 - Multi-sectional: 4200 square feet
 - e. Minimum area per Manufactured home Space width
 - Single-wide: 38 linear feet
 - Multi-sectional: 50 linear feet
 - f. Maximum number of Manufactured homes per Mobile Home Space: 1
 - g. Minimum number of Parking Spaces per Mobile Home Space (located on each space): 2
 - h. Minimum area of landing/patio per Manufactured home Space (located on each space): 32 square feet
 - i. Minimum width of paved or graveled private street: NCDOT standards for two-way street; 12 feet for one-way street
 - j. Minimum percentage of Manufactured home Spaces with approved water supply and sewage disposal facilities: 100 percent
 - k. Minimum percentage Manufactured Home Spaces with garbage collection/disposal services provided by owner/operator: 100 percent
 - l. Minimum separation between each unit: 20 linear feet
 - m. Identification Sign conforming to Chapter 11 required
 - n. Vehicle speed control devices required

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- o. Accessory buildings prohibited between manufactured home and street
- p. Accessory buildings to be on same space as principal manufactured home
- q. Skirting shall be of material acceptable for exterior construction that will not support combustion. Skirting material shall be durable and suitable for exterior exposures. Any wood framing used to support this skirting shall be approved moisture resistant treated wood. Skirting shall be continuous and unpierced except for ventilation. Skirting manufactured specifically for underpinning shall be installed in accordance with the manufacturer's specifications. Skirting shall be kept in good repair.

Section 5.12 Nonconforming Adult-Oriented Businesses

- A. Any Adult Oriented Business that fails to comply with the use and locational requirements of this Ordinance but which was lawfully operating before the effective date of this Ordinance, shall not be deemed to be in violation of this Ordinance but shall be nonconforming. Any such business which ceases active operation for a period of 30 days regardless of the purpose or reason shall be subject to all the requirements of this Ordinance and the property may thereafter be used only for conforming uses.
- B. Any Adult Oriented Business lawfully operating as of the effective date of this Ordinance, but which subsequently fails to comply with the use and locational requirements of this Ordinance as the result of changes within the vicinity or amendment to this Ordinance, shall not be deemed to be in violation of this Ordinance but shall be nonconforming. Any such business which ceases active operation for a period of 30 days regardless of purpose or reason shall be subject to all the requirements of this Ordinance and the property may thereafter be used only for conforming uses.
- C. Any Adult Oriented Business that is rendered a nonconforming use as a result of (A) and (B) above shall either cease to operate or meet all of the requirements of this Ordinance for the use no later than five (5) years from the date that the Adult Oriented Business becomes a nonconforming use.